TITLE COMMITMENT

Driftwood Town Center | San Diego, CA

Commitment No.	TC-3333
Property	Driftwood Town Center, 3892 Peachtree Court, San Diego, CA 51055
Proposed Insured	Juniper Peak Real Estate Fund
Effective Date	March 31, 2022

1. Schedule A - Commitment. Effective Date: March 31, 2022. Policy to be issued: ALTA Owner's Policy (2021). Proposed Insured: Juniper Peak Real Estate Fund. Amount of Insurance: $68,230,000. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

2. Schedule A - Estate or Interest. Fee simple estate in the land described below is vested in Fenwick & Dale Investments. Time is of the essence with respect to each and every provision of this instrument. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

3. Schedule B-I - Requirements. Pay the full consideration to or for the account of the grantors. Record the deed from Fenwick & Dale Investments to Juniper Peak Real Estate Fund. Provide evidence of authority of signatories. Time is of the essence with respect to each and every provision of this instrument. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

4. Schedule B-II - Exception. Taxes and assessments for the year 2020 and subsequent years, a lien not yet due and payable. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

5. Schedule B-II - Exception. Easement in favor of the local electric utility recorded in Book 46, Page 46, Official Records of the county. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

6. Schedule B-II - Exception. Declaration of covenants, conditions and restrictions recorded as Instrument No. 262626, as amended. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of CA.

7. Schedule B-II - Exception. Rights of tenants, as tenants only, under unrecorded leases listed on the rent roll. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

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8. Schedule B-II - Exception. Matters shown on survey prepared by Compass Point Geomatics, including encroachments, if any, along the boundary lines. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

9. Schedule A - Commitment. Effective Date: March 31, 2022. Policy to be issued: ALTA Owner's Policy (2021). Proposed Insured: Juniper Peak Real Estate Fund. Amount of Insurance: $68,230,000. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

10. Schedule A - Estate or Interest. Fee simple estate in the land described below is vested in Fenwick & Dale Investments. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

11. Schedule B-I - Requirements. Pay the full consideration to or for the account of the grantors. Record the deed from Fenwick & Dale Investments to Juniper Peak Real Estate Fund. Provide evidence of authority of signatories. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of CA.

12. Schedule B-II - Exception. Taxes and assessments for the year 2021 and subsequent years, a lien not yet due and payable. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of CA.

13. Schedule B-II - Exception. Easement in favor of the local electric utility recorded in Book 34, Page 34, Official Records of the county. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of CA. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

14. Schedule B-II - Exception. Declaration of covenants, conditions and restrictions recorded as Instrument No. 888, as amended. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

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15. Schedule B-II - Exception. Rights of tenants, as tenants only, under unrecorded leases listed on the rent roll. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

16. Schedule B-II - Exception. Matters shown on survey prepared by Compass Point Geomatics, including encroachments, if any, along the boundary lines. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

17. Schedule A - Commitment. Effective Date: March 31, 2022. Policy to be issued: ALTA Owner's Policy (2021). Proposed Insured: Juniper Peak Real Estate Fund. Amount of Insurance: $68,230,000. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

18. Schedule A - Estate or Interest. Fee simple estate in the land described below is vested in Fenwick & Dale Investments. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of CA. Time is of the essence with respect to each and every provision of this instrument.

19. Schedule B-I - Requirements. Pay the full consideration to or for the account of the grantors. Record the deed from Fenwick & Dale Investments to Juniper Peak Real Estate Fund. Provide evidence of authority of signatories. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

20. Schedule B-II - Exception. Taxes and assessments for the year 2025 and subsequent years, a lien not yet due and payable. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

21. Schedule B-II - Exception. Easement in favor of the local electric utility recorded in Book 26, Page 26, Official Records of the county. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

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22. Schedule B-II - Exception. Declaration of covenants, conditions and restrictions recorded as Instrument No. 222, as amended. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

23. Schedule B-II - Exception. Rights of tenants, as tenants only, under unrecorded leases listed on the rent roll. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of CA. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

24. Schedule B-II - Exception. Matters shown on survey prepared by Compass Point Geomatics, including encroachments, if any, along the boundary lines. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

25. Schedule A - Commitment. Effective Date: March 31, 2022. Policy to be issued: ALTA Owner's Policy (2021). Proposed Insured: Juniper Peak Real Estate Fund. Amount of Insurance: $68,230,000. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of CA. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

26. Schedule A - Estate or Interest. Fee simple estate in the land described below is vested in Fenwick & Dale Investments. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

27. Schedule B-I - Requirements. Pay the full consideration to or for the account of the grantors. Record the deed from Fenwick & Dale Investments to Juniper Peak Real Estate Fund. Provide evidence of authority of signatories. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

28. Schedule B-II - Exception. Taxes and assessments for the year 2019 and subsequent years, a lien not yet due and payable. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

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29. Schedule B-II - Exception. Easement in favor of the local electric utility recorded in Book 39, Page 39, Official Records of the county. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of CA.

30. Schedule B-II - Exception. Declaration of covenants, conditions and restrictions recorded as Instrument No. 292929, as amended. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. Time is of the essence with respect to each and every provision of this instrument.

31. Schedule B-II - Exception. Rights of tenants, as tenants only, under unrecorded leases listed on the rent roll. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

32. Schedule B-II - Exception. Matters shown on survey prepared by Compass Point Geomatics, including encroachments, if any, along the boundary lines. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

33. Schedule A - Commitment. Effective Date: March 31, 2022. Policy to be issued: ALTA Owner's Policy (2021). Proposed Insured: Juniper Peak Real Estate Fund. Amount of Insurance: $68,230,000. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

34. Schedule A - Estate or Interest. Fee simple estate in the land described below is vested in Fenwick & Dale Investments. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

35. Schedule B-I - Requirements. Pay the full consideration to or for the account of the grantors. Record the deed from Fenwick & Dale Investments to Juniper Peak Real Estate Fund. Provide evidence of authority of signatories. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

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36. Schedule B-II - Exception. Taxes and assessments for the year 2020 and subsequent years, a lien not yet due and payable. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. Time is of the essence with respect to each and every provision of this instrument.

37. Schedule B-II - Exception. Easement in favor of the local electric utility recorded in Book 2, Page 2, Official Records of the county. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of CA. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

38. Schedule B-II - Exception. Declaration of covenants, conditions and restrictions recorded as Instrument No. 151515, as amended. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. Time is of the essence with respect to each and every provision of this instrument.

39. Schedule B-II - Exception. Rights of tenants, as tenants only, under unrecorded leases listed on the rent roll. Time is of the essence with respect to each and every provision of this instrument. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

40. Schedule B-II - Exception. Matters shown on survey prepared by Compass Point Geomatics, including encroachments, if any, along the boundary lines. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of CA.

41. Schedule A - Commitment. Effective Date: March 31, 2022. Policy to be issued: ALTA Owner's Policy (2021). Proposed Insured: Juniper Peak Real Estate Fund. Amount of Insurance: $68,230,000. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. Time is of the essence with respect to each and every provision of this instrument.

42. Schedule A - Estate or Interest. Fee simple estate in the land described below is vested in Fenwick & Dale Investments. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

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43. Schedule B-I - Requirements. Pay the full consideration to or for the account of the grantors. Record the deed from Fenwick & Dale Investments to Juniper Peak Real Estate Fund. Provide evidence of authority of signatories. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of CA. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

44. Schedule B-II - Exception. Taxes and assessments for the year 2023 and subsequent years, a lien not yet due and payable. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

45. Schedule B-II - Exception. Easement in favor of the local electric utility recorded in Book 15, Page 15, Official Records of the county. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

46. Schedule B-II - Exception. Declaration of covenants, conditions and restrictions recorded as Instrument No. 181818, as amended. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

47. Schedule B-II - Exception. Rights of tenants, as tenants only, under unrecorded leases listed on the rent roll. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

48. Schedule B-II - Exception. Matters shown on survey prepared by Compass Point Geomatics, including encroachments, if any, along the boundary lines. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

49. Schedule A - Commitment. Effective Date: March 31, 2022. Policy to be issued: ALTA Owner's Policy (2021). Proposed Insured: Juniper Peak Real Estate Fund. Amount of Insurance: $68,230,000. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

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50. Schedule A - Estate or Interest. Fee simple estate in the land described below is vested in Fenwick & Dale Investments. Time is of the essence with respect to each and every provision of this instrument. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

51. Schedule B-I - Requirements. Pay the full consideration to or for the account of the grantors. Record the deed from Fenwick & Dale Investments to Juniper Peak Real Estate Fund. Provide evidence of authority of signatories. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

52. Schedule B-II - Exception. Taxes and assessments for the year 2025 and subsequent years, a lien not yet due and payable. Time is of the essence with respect to each and every provision of this instrument. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

53. Schedule B-II - Exception. Easement in favor of the local electric utility recorded in Book 38, Page 38, Official Records of the county. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. Time is of the essence with respect to each and every provision of this instrument.

54. Schedule B-II - Exception. Declaration of covenants, conditions and restrictions recorded as Instrument No. 404040, as amended. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of CA.

55. Schedule B-II - Exception. Rights of tenants, as tenants only, under unrecorded leases listed on the rent roll. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. Time is of the essence with respect to each and every provision of this instrument.

56. Schedule B-II - Exception. Matters shown on survey prepared by Compass Point Geomatics, including encroachments, if any, along the boundary lines. Time is of the essence with respect to each and every provision of this instrument. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of CA.

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57. Schedule A - Commitment. Effective Date: March 31, 2022. Policy to be issued: ALTA Owner's Policy (2021). Proposed Insured: Juniper Peak Real Estate Fund. Amount of Insurance: $68,230,000. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of CA.

58. Schedule A - Estate or Interest. Fee simple estate in the land described below is vested in Fenwick & Dale Investments. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of CA. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

59. Schedule B-I - Requirements. Pay the full consideration to or for the account of the grantors. Record the deed from Fenwick & Dale Investments to Juniper Peak Real Estate Fund. Provide evidence of authority of signatories. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of CA.

60. Schedule B-II - Exception. Taxes and assessments for the year 2022 and subsequent years, a lien not yet due and payable. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

61. Schedule B-II - Exception. Easement in favor of the local electric utility recorded in Book 11, Page 11, Official Records of the county. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of CA. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

62. Schedule B-II - Exception. Declaration of covenants, conditions and restrictions recorded as Instrument No. 212121, as amended. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

63. Schedule B-II - Exception. Rights of tenants, as tenants only, under unrecorded leases listed on the rent roll. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

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64. Schedule B-II - Exception. Matters shown on survey prepared by Compass Point Geomatics, including encroachments, if any, along the boundary lines. Time is of the essence with respect to each and every provision of this instrument. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

65. Schedule A - Commitment. Effective Date: March 31, 2022. Policy to be issued: ALTA Owner's Policy (2021). Proposed Insured: Juniper Peak Real Estate Fund. Amount of Insurance: $68,230,000. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

66. Schedule A - Estate or Interest. Fee simple estate in the land described below is vested in Fenwick & Dale Investments. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

67. Schedule B-I - Requirements. Pay the full consideration to or for the account of the grantors. Record the deed from Fenwick & Dale Investments to Juniper Peak Real Estate Fund. Provide evidence of authority of signatories. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

68. Schedule B-II - Exception. Taxes and assessments for the year 2026 and subsequent years, a lien not yet due and payable. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

69. Schedule B-II - Exception. Easement in favor of the local electric utility recorded in Book 30, Page 30, Official Records of the county. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

70. Schedule B-II - Exception. Declaration of covenants, conditions and restrictions recorded as Instrument No. 333, as amended. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

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71. Schedule B-II - Exception. Rights of tenants, as tenants only, under unrecorded leases listed on the rent roll. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

72. Schedule B-II - Exception. Matters shown on survey prepared by Compass Point Geomatics, including encroachments, if any, along the boundary lines. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

73. Schedule A - Commitment. Effective Date: March 31, 2022. Policy to be issued: ALTA Owner's Policy (2021). Proposed Insured: Juniper Peak Real Estate Fund. Amount of Insurance: $68,230,000. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of CA. Time is of the essence with respect to each and every provision of this instrument.

74. Schedule A - Estate or Interest. Fee simple estate in the land described below is vested in Fenwick & Dale Investments. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. Time is of the essence with respect to each and every provision of this instrument.

75. Schedule B-I - Requirements. Pay the full consideration to or for the account of the grantors. Record the deed from Fenwick & Dale Investments to Juniper Peak Real Estate Fund. Provide evidence of authority of signatories. Time is of the essence with respect to each and every provision of this instrument. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

76. Schedule B-II - Exception. Taxes and assessments for the year 2019 and subsequent years, a lien not yet due and payable. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. Time is of the essence with respect to each and every provision of this instrument.

77. Schedule B-II - Exception. Easement in favor of the local electric utility recorded in Book 48, Page 48, Official Records of the county. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

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78. Schedule B-II - Exception. Declaration of covenants, conditions and restrictions recorded as Instrument No. 484848, as amended. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

79. Schedule B-II - Exception. Rights of tenants, as tenants only, under unrecorded leases listed on the rent roll. Time is of the essence with respect to each and every provision of this instrument. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of CA.

80. Schedule B-II - Exception. Matters shown on survey prepared by Compass Point Geomatics, including encroachments, if any, along the boundary lines. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

81. Schedule A - Commitment. Effective Date: March 31, 2022. Policy to be issued: ALTA Owner's Policy (2021). Proposed Insured: Juniper Peak Real Estate Fund. Amount of Insurance: $68,230,000. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

82. Schedule A - Estate or Interest. Fee simple estate in the land described below is vested in Fenwick & Dale Investments. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

83. Schedule B-I - Requirements. Pay the full consideration to or for the account of the grantors. Record the deed from Fenwick & Dale Investments to Juniper Peak Real Estate Fund. Provide evidence of authority of signatories. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

84. Schedule B-II - Exception. Taxes and assessments for the year 2020 and subsequent years, a lien not yet due and payable. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

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Disclaimer and Confidentiality

The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. This document relates solely to Driftwood Town Center and has been prepared for the use of the recipient only; it may not be reproduced or distributed.

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The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. Time is of the essence with respect to each and every provision of this instrument. This document relates solely to Driftwood Town Center and has been prepared for the use of the recipient only; it may not be reproduced or distributed.

No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. This document relates solely to Driftwood Town Center and has been prepared for the use of the recipient only; it may not be reproduced or distributed.

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FICTITIOUS SAMPLE DOCUMENT — all names, figures and entities are invented for classroom training use only